CORAM: HIS WORSHIP MAWUKOENYA NUTEKPOR (DISTRICT MAGISTRATE), SITTING AT THE DISTRICT COURT, BOLGATANGA IN THE UPPER EAST REGION OF GHANA, ON MONDAY, THE 14TH DAY OF APRIL, 2025.

SUIT NO: UE/BG/DC/A4/8/2024

SUSANA AZOKO
OF DABORO **PETITIONER**
NEAR ZUARUNGU CHIEF PALACE

VRS.

ROLANDADABRE AWINE
OF BAARE TONGO **RESPONDENT**
NEAR BAARE CHIEF PALACE

TIME: 08:35AM

PARTIES PRESENT

RICHARD ADAZABRA, ESQ. FOR THE PETITIONER

MOHAMMED TIAMIYU, ESQ. FOR THE RESPONDENT

JUDGMENT

Introduction

1. This judgment is in respect of a love affair gone sour, on which shoulders both parties herein have importuned the court to sort out the messy consequences of their marriage which has unravelled. The Roman poet Virgil in his Eclogues asserts that "*Omnia vincit Amor*" which means love conquers all things. The idiom "Love conquers all" means that love is a powerful force that can overcome any obstacle or difficulty. It suggests that when two individuals are deeply in

love with each other, their bond and affection can triumph over challenges, conflicts, or adversities that they may encounter in life. Unfortunately, the empirical evidence from divorce litigation disproves this assertion. If indeed love conquers all, the parties herein would have resolved their matrimonial difficulties or differences.

2. The Petitioner per her petition for divorce filed on the 22nd day of July, 2024, claims against the Respondent for the following reliefs:

   a. An order dissolving her ordinance marriage to the Respondent as having broken down beyond reconciliation.

   b. An order giving her custody of her three (3) children she had with Respondent.

   c. An order that Respondent pays to Petitioner a sum of **GH¢100,000.00** (one hundred thousand Ghana Cedis) being Reasonable compensation for all the stress, pain and sacrifice Petitioner put into the marriage.

   d. An order that Respondent pays an amount of GH¢1,500.00 per month being maintenance for Petitioner's thee children.

   e. An order that Respondent contributes to paying the school fees, educational materials, and canteen fees of the children.

   f. Cost of the action.

3. The Respondent also filed his answer to the petition on 12th day of September, 2024 and cross petition for the following reliefs:

   a. **An Order** of the Court dissolving the ordinance marriage contracted between the Parties in July, 2009 at the Gowrie Catholic Church in the Bongo Parish as having broken beyond reconciliation.

   b. **An Order** granting custody of the three (3) children of the household (two of whom are already with the Respondent) to the Respondent with reasonable access to the Petitioner as the best interest of these children is comparably guaranteed with the Respondent.

   c. **An Order** directed at the Petitioner to pay the Respondent an amount of **Two Thousand Ghana Cedis (GH¢2,000.00)** for the expenses incurred by the Respondent to bring the child the Petitioner unlawfully removed from school in Bolgatanga to Nkoranza.

   d. **An Order** directed at the Petitioner to compensate the Respondent with an amount of **One Hundred Thousand Ghana Cedis (GH¢100,000.00)** being part of the amount the Respondent spent on the Petitioner's Degree programme at the University.

   e. **Cost** including Solicitor's fees.

Brief Facts of the case

4. The Petitioner, a Teacher and the Respondent, a Teacher got married customarily in 2008. In July 2009, the customary marriage was converted into monogamous or Ordinance marriage celebrated at the Gowrie Catholic Church in the Bongo Parish. The parties in the course of their marriage cohabited at Zebilla and Gowrie. The marriage is blessed with three (3) children namely, Amanda Adabre Nma aged 15 years, Stanislaus Anongyine Adabre aged 12 years, Danee or Elizabeth Adabre aged 10 years. Currently, two of the children are living with the Respondent whiles one is living with the Petitioner. The parties have been separated since 2015 and both of them contend that the marriage between them has broken beyond reconciliation.

5. Petitioner says that Respondent has strangely maltreated her in the marriage and behaved unreasonably leading to the break-down of the marriage beyond reconciliation. She particularized unreasonable behaviour as follows: Defaming Petitioner to the whole world by saying falsely and persistently that she is an adulterous woman; Falsely accusing Petitioner and her children of being witches; Publicly and without provocation beating the Petitioner in front of other members of the family and attempting to kill Petitioner by strangulation of her neck and squeezing it with both hands; Collecting a lot of rings from somewhere and falsely claiming that these representing witchcraft being strange rings were in Petitioner's bag; and Falsely accusing Petitioner of having changed the children's names.

6. The Respondent in denied behaving unreasonably towards the Petitioner and stated as follows: That the rings referred to by the Petitioner were found in a bag

when Respondent was searching for the Petitioner's Transfer and Assurance letters which she did without notice to the Respondent; That Respondent asked about the rings and Petitioner said it might be the children that deposited them in her bag; Respondent says that Petitioner changed the names of the last two children of the household and this fact is verifiable from the children's NHIS cards; and that the Petitioner through her unreasonable behaviour has inflicted on the Respondent physical and psychological scars that would take a life time to forget.

7. Petitioner claims she is in better position to take care of the children better than the Respondent and vice versa. Wherefore, both parties claimed for reliefs against each other as stated above.

Issues for determination

8. The main issue for determination in this case is whether or not the marriage between the Petitioner and the Respondent herein has broken down beyond reconciliation. In addressing this main issue, the following issues will be determined:

   a) Whether or not the Respondent has behaved in a way that the Petitioner cannot reasonably be expected to live with the Respondent.

   b) Whether or not the parties have been unable to reconcile their differences after diligent efforts.

c) Whether or not the parties have lived as a husband and wife for a continuous period of at least two years preceding the commencement of this petition for divorce.

d) Whether or not the Petitioner or Respondent be granted custody of the Children of the marriage; and how much should be awarded as maintenance allowance.

e) Whether or not Petitioner is entitled to be awarded a lump sum of Hundred Thousand Ghana Cedis (GH¢100,000.00) as reasonable compensation for all the stress, pain and sacrifice Petitioner put into the marriage.

f) Whether or not Respondent is entitled to the sum of Hundred Thousand Ghana Cedis (GH¢100,000.00) as compensation for part of the amount of money he allegedly spent on the Petitioner's Degree programme at the University.

Evaluation of Evidence/Legal analysis and finding of facts

9. The Petitioner testified herself and called two witnesses. She tendered in evidence the following documents: The letter dated 8/01/21 and Social Welfare referral form A as **Exhibits A and B** respectively. The photographs of houses as **Exhibit C Series** (C, C1 and C2), Photographs of the children as **Exhibit D Series** (D, D1, D2, and D3), Birth Certificates of the children as **Exhibit E series** (E, E1,

E2, E3 and E4), the Receipts as **Exhibit F Series** (F1,F2 F3, F4, F5, F6, F7, F8, F9, F10, F11, F12, F13, F14, F15, F16, F17, F18, and F19),, and Terminal Reports of the children as **Exhibit G Series** (G, G1, G2, G3, G4, G5, G6 and G7).

10. The Respondent testified himself and called one witness. He tendered in evidence the following documents: The NHIS Card of Stanislaus, two letters dated 9/06/2011, letter 10/06/2008, letter dated 02/07/2014, letter dated 08/06/2020, Deposit slip (GCB) and police wireless massage as **Exhibits 1, 2a, 2b, 3, 4, 5, 6 and 7** respectively.

11. It is trite law that the sole ground for granting a petition for divorce is that a marriage has broken down beyond reconciliation. **Section 1(2) of the Matrimonial Causes Act, 1971 (Act 367)** states that:
The sole ground for granting a petition for divorce shall be that the marriage has broken down beyond reconciliation.

12. The law under Section 2(1) of Act 367 makes provision for six facts to prove the ground that the marriage has broken down beyond reconciliation. Thus, the Petitioner has the burden to satisfy the court on one or more of the following facts: -

(a) That the Respondent has committed adultery and that by reason of such adultery the Petitioner finds it intolerable to live with the Respondent; or
(b) That the Respondent has behaved in such a way that the Petitioner cannot reasonably be expected to live with the Respondent; or

(c) That the Respondent has deserted the Petitioner for a continuous Period of at least two years immediately preceding the presentation of the petition; or

(d) That the parties to the marriage have not lived as man and wife for a continuous period of at least two years immediately preceding the presentation of the petition and the respondent consents to the grant of a decree of divorce; provided that such consent shall not be unreasonably withheld, and where the Court is satisfied that it has been so withheld, the Court may grant a petition for divorce under this paragraph notwithstanding the refusal; or

(e) That the parties to the marriage have not lived as man and wife for a continuous period of at least five years immediately preceding the presentation of the petition; or

(f) That the parties to the marriage have, after diligent effort, been unable to reconcile their differences.

13. Although it is the duty of the court to inquire, so far as it reasonably can, into the facts alleged by both parties as stated in section 2(2), in practical terms the burden on the Petitioner is solely to establish one of the facts and it is for the Respondent in a defended suit to show, if he wishes, that the marriage has not broken down irretrievably as stated in the case of **Ash v Ash (1972) 1 All ER 582; Pheasant v Pheasant (1972) 1 All ER 587.** In the case of **Kotei v. Kotei [1974] 2 GLR 172,** Sarkodee J stated that:

"*Notwithstanding proof of one of the facts showing that the marriage has broken down the court has a discretion to refuse to grant the decree of dissolution on the ground that the marriage has not in fact broken down beyond reconciliation. The discretion given to the court is not discretion to grant but discretion to refuse a*

decree of dissolution. The burden is not on the petitioner to show that special facts or grounds existed justifying the exercise of the court's discretion; once he or she comes within any one of the provisions specified in section 2 (1) (e) and (f) of Act 367 the presumption is in his or her favour."

14. Hence proof of any of the facts raises a presumption of breakdown. If any of the facts is made out, the court must grant the dissolution unless it is satisfied that the marriage has not broken down irretrievably. The burden of proof and persuasion is on the part of the person making the averments to adduce sufficient, cogent and reliable evidence to support the allegations contained in the petition or cross-petition for the court to arrive at the decision that the facts alleged exist rather than their non-existence. I will now proceed to examine the issues as set out above.

15. **The first issue to consider is whether or not the Respondent has behaved in a way that the Petitioner cannot reasonably be expected to live with the Respondent.** A Petitioner may satisfy the court that a marriage has broken down beyond reconciliation by adducing evidence that are in tandem with **section 2(b) of Act 367.** This section is to the effect that the Respondent has behaved in such a way that the Petitioner cannot reasonably be expected to live with him or her. The Cambridge Advanced Learner's Dictionary (4th Edition) has defined behaviour generally as "the way that a person behaves in a particular situation or under particular conditions. **Baker P in Katz v Katz [1972] 3 All ER 219** put it as follows:

"Behaviour is something more than a mere state of affairs or state of mind, such as for example a repugnance to sexual intercourse, or a feeling that the wife is not

reciprocating the husband's love, or not being as demonstrative as he thinks she should be. Behaviour in this context is action or conduct by one which affects the other. Such conduct may either take the form of acts or omissions or may be a course of conduct, and, in my view, it must have some reference to the marriage."

16. Unreasonable behaviour in marriage can also take the form of cruelty, nagging, drunkenness, threats or violence. In dealing with behaviour, the question is whether the Petitioner can reasonably be expected to live with the Respondent**.** In **Knudsen v Knudsen [1976] 1 GLR 204,** the court stated as follows:

The behaviour of a party which will lead to this conclusion would range over a wide variety of acts. It may consist of one act if it is of sufficient gravity or of a persistent course of conduct or of a series of acts of differing kinds none of which by itself may justify a conclusion that the person seeking the divorce cannot reasonably be expected to live with the spouse, but the cumulative effect of all taken together would do so.

In **Mensah v Mensah [1972] 2 GLR 198**, the court further stated that:

In determining whether a husband has behaved in such a way as to make it unreasonable to expect a wife to live with him the court must consider all the circumstances constituting such behaviour including the history of the marriage. It is always a question of fact. The conduct complained of must be grave and weighty and mere trivialities will not suffice…

In the instant case, the Petitioner claims that the Respondent has behaved in a manner in which she cannot reasonably be expected to live with him as a wife.

The particulars of unreasonable behaviour are listed *supra* and there will be no need repeat them here. The Respondent denied all these allegations and is it the duty of Petitioner to prove those allegations. The Petitioner repeated the allegations on oath without more. It is trite that a bare assertion or merely repeating a party's pleadings in the witness box without more does not constitute proof. It has been held in the case of **Majolagbe v Larbi & Anor [1959] GLR 190 @ 192** that

"Where a party makes an averment capable of proof in some positive way, eg. by producing documents, description of things, reference to other facts, instances or circumstances and his averment is denied, he does not prove it by merely going into the witness box and repeating that averment on oath, or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances, from which the court can be satisfied that what he avers is true."

17. The Petitioner has therefore failed to lead any evidence in support of these allegations of unreasonable behaviours. This Court therefore find as a fact that the Petitioner has failed to satisfy the court to the effect that Respondent has behaved unreasonably towards her which made it intolerable to live in his company.

18. **The second issue to address is whether or not the parties have been unable to reconcile their differences after diligent efforts. Section 2(1) (f) of the Matrimonial Causes Act, ACT 367** is to the effect that, one of the facts for establishing that a marriage has broken down beyond reconciliation is to establish that the parties to the marriage have, after diligent effort, been unable to

reconcile their differences. **Section 8 of the Matrimonial Causes Act, ACT 367** states:

(1) On the hearing of a petition for divorce, the petitioner or his counsel shall inform the court of all efforts made by or on behalf of the petitioner, both before and after the commencement of the proceedings, to effect a reconciliation.

19. In her evidence, the Petitioner testified that there were several unresolved matrimonial issues between her and the Respondent and all attempt to reconcile them by relatives and friends proved futile. According to the Respondent both the Petitioner and Respondent have had issues in the marriage and several attempts were made to reconcile the parties but all attempts prove unsuccessful. Respondent testified that he went with two family members to the Petitioner's family house twice in Zuarungu in 2021 and not less than five times in 2024 in search for a settlement of the impasse but Petitioner refused. DW1 also testified that "*All attempts to reconcile the differences between the two have failed ... I personally went to meet the Petitioner's family at Zuarungu in 2015 three times in the month of August, and in September and October 2017. ….. 2024 alone I together with some family members have visited the Petitioner's family not less than five times but all to no avail."*

20. It must be noted that in the course of this case, the court gave several opportunities to the parties to reconcile but all to no avail. It is also noteworthy that there is no regular or proper communication between Petitioner and the Respondent which confirms the fact that they were unable to settle their matrimonial issues. This court is of the view that all issues leading to the separation between the parties are due to lack of communication. Also, all the

issues leading to separation of the children in 2020 and report to DOVSU leading arrest of the Petitioner are due to lack of communication.

21. This court therefore finds as a fact that the parties have been unable to reconcile their differences after diligent efforts. Accordingly, the court is satisfied that the marriage has broken down beyond reconciliation.

22. The next issue to determine is **whether or not the parties have lived as a husband and wife for a continuous period of at least two years preceding the commencement of this petition for divorce.** From the evidence, the court found as a fact the parties have not lived as a husband and wife for a continuous period of at least two years preceding the commencement of this petition for divorce; and that the Respondent has consented to the resolution of the marriage between them. The law is that if parties have not lived as husband and wife for continuous period of at least two years preceding the presentation of the petition for divorce and the Respondent consented to the dissolution of the marriage, the court should proceed to grant the divorce. See section **2(1)(d) of Act 376** and the case of **Addo vrs. Addo (1973) 2 GLR 103, HC.** Accordingly, this court holds that the marriage between the parties has broken down reconciliation as the parties have not lived as a husband and wife for a continuous period of at least two years preceding the commencement of this petition for divorce.

23. I will now proceed to determine issue of **whether or not the Petitioner or Respondent be granted custody of the Children of the marriage; and how much should be awarded as maintenance allowance.** Before I proceed to deal with this issue, it bears reminding that regarding issues concerning children, the

Court must seek solely what is in the paramount interest of the child. Section 2 of the Children's Act, 1998 (Act 560) provides that:

[t]he best interest of the child shall be paramount in any matter concerning a child. The best interest of the child shall be the primary consideration by any court, person, institution or other body in any matter concerned with a child.

Section 2 of the Children's Act is based on Article 3(1) of the **Convention on the Rights of the Child (adopted by the General Assembly Resolution 44/25 of 20th November, 1989 and entry into force on 2nd September 1990)** which provides that,

[i]n all actions concerning children, whether undertaken by public or private social welfare institutions, courts of law, administrative authorities or legislative bodies, the best interests of the child shall be a primary consideration.

Also, section 22 of the **Matrimonial Causes Act, 1971 (Act 367) on** Custody and financial provision for children provides as follows:

(1) In proceedings under this Act, the Court shall inquire whether there are any children of the household.
(2) The Court may, either on its own initiative or on application by a party to proceedings under this Act, make an order concerning a child of the household which it thinks reasonable and for the benefit of the child.
(3) Without prejudice to the generality of subsection (2), ***an order under that subsection may (a) award custody of the child to any person;***
(b) regulate the right of access of any person to the child;

(c) ***provide for the education and maintenance of the child out of the property or income of either or both of the parties to the marriage.***

24. Being guided by the authorities above, the question for this court is whether it would be in the best interest of the children to grant custody of the children to the Petitioner or the Respondent. To resolve this issue, the court is mandated by section 45 of the Children's Act, 1998 (Act 560), to—as a matter of paramount importance—consider the best interest of the child and the importance of a young child being with his mother when making an order for custody or access. To achieve this end the panel is mandated to also consider –

"(a) the age of the child; (b) that it is preferable for a child to be with his parents except if his rights are persistently being abused by his parents; (c) the views of the child if the views have been independently given; (d) that it is desirable to keep siblings together; (e) the need for continuity in the care and control of the child; and (f) any other matter that the Family Tribunal may consider relevant."

25. The assessment of all the factors to determine what would be in the paramount interest of a child involves the exercise of judicial discretion after all the relevant factors have been considered: see: *Re F (an infant) [1969] 2 All ER 766; Attu v Attu [1984-86] 2 GLR 743; and Young v Young [1993] 4 S.C.R 3 at para 71 per L'Heureux-Dubé J*

26. The determination as to who should have custody of a child is merely an answer to the question: "what should be the best interest of the child"? It does not in any way terminate parental duties owed by the parent against whom the order is

made: see *Re W (Minors) (Residence Order) [1992] 2 F.C.R 461 at 465 per Butler-Sloss LJ.*

27. In the instant case, Petitioner testified that she is in the best position to take care of the children than any other person. According to the Petitioner, she has time for the children and as their biological mother; she is the best person to care for them, pays their school fees and all other fees and expenses of the children. According to the Petitioner, Respondent does not care for the children and that it is his junior brother's wife who cooks for the children to eat including all her numerous children in the family house, thus resulting in the inadequate feeding of the children. Petitioner says that though Respondent is a teacher, he has no time at for the children, roams the night in town and comes home at unspeakable midnight hours, and hardly ever finds whether his children have eaten the night before, and cares not whether his children have done their homework.

28. Respondent on the other hand claims he has time for the children, teaches them extra classes, monitors and assists them to do their homework which has reflected in their terminal report cards. It is the Respondent's case that the first child of the household was one of the best students of their school BECE candidates of 2023 year group; and that this is a testimony to the fact that the he is rather the best person to take care of the children. Respondent stated as follows that: He has time for the children and knows how to cook their meals; He has been paying the school fees of the children since they attained school going age; He has been buying educational learning materials; like books, pamphlets, bags, calculators, mathematical set etc. for the children; and the

Petitioner has sine the year 2020 not contributed anything towards the welfare of the children.

29. From the evidence, Amanda Adabre aged 15 years and Stanislaus Adabre aged 12 years are currently living with their father and are happy as gathered from the independent interview I had with them. They have been living with their father since 2020. Stanislaus is in JHS 2 at St. Anthony of Padua JHS, Bolga and would be writing WASSCE next year. Amanda is in SHS at St. Francis Girls SHS, Wa. This court is therefore of the view that it will be in their best interest to maintain the *status quo* and so their best interest is for them to live with their father, Respondent. I also independently interviewed Danee or Elizabeth who is 10 years and in class five (5) at Kwebis Educational Complex, Nkoranza. From the interview or my interaction with Danee or Elizabeth the court found that he has been living with her mother since she was born and she is also happy. This court is of the view that it is better to maintain the *status quo* and allow her to stay with her mother, the Petitioner. I also considered the importance of a young child being with his or her mother.

30. Accordingly, custody of Amanda Adabre aged 15 years and Stanislaus aged 12 years is hereby granted to the Respondent whiles custody of Danee or Elizabeth Adabre aged 10 years is granted to the Petitioner. This decision is arrived at after thorough consideration of the evidence on record in accordance with the best interest of the children in issue and in accordance with the authorities mentioned *supra*. To ensure compliance with the dictates of **section 5 of the Children's Act, 1998 (Act 560)** which grants children the right to grow with their natural parents, I hereby grant access to Amanda Adabre aged 15 years and Stanislaus Adabre

aged 12 years by Petitioner who shall accordingly has the right to live with them not later than two (2) clear days into their vacation except that Petitioner shall return the children to the Respondent not later than two (2) clear days before school reopens. I also grant access to Elizabeth or Danee Adabre by Respondent who shall accordingly has the right to live with her not later than two (2) clear days into her vacation except that Respondent shall return her to the Petitioner not later than two (2) clear days before school reopens.

31. Furthermore, this court found as a fact that both parties are working or employed as Teachers. They have three children who are in school; and since both parties are working it is their responsibility to take care of the children together. Accordingly, the Respondent as the man shall be responsible for paying of the Educational Expenses and Medical Expenses of the children while the Petitioner as the woman shall support the Respondent in paying those expenses. The Respondent shall in addition pay an amount of Five Hundred Ghana Cedis (**GHC500.00)** to the Petitioner every month as maintenance allowance for the upkeep of Elizabeth or Danee Adabre till she attains the age of 18 years. The Petitioner and the Respondent are advised not to influence the children of the marriage against each other. The parties are also encouraged to communicate in order to enable them take good care of the children together.

32. I will now proceed to determine the following issues together. **Whether or not Petitioner is entitled to be awarded a lump sum of Hundred Thousand Ghana Cedis (GH¢100,000.00) as reasonable compensation for all the stress, pain and sacrifice she allegedly put into the marriage; and whether or not Respondent is entitled to the sum of Hundred Thousand Ghana Cedis**

(GH¢100,000.00) as compensation for part of the amount of money he allegedly spent on the Petitioner's Degree programme at the University. Respondent is claiming the sum of Hundred Thousand Ghana Cedis (GH¢100,000.00) as compensation for part of the amount of money he spent on the Petitioner's Degree programme at the University. This means that the amount he allegedly spent is more than GHC100,000.00 but he is only claiming part of it. Respondent's claim in law is referred to as special damages. The law requires special damages to be pleaded, particularized and specifically proved. See the cases of **Royal Dutch Airlines (KLM) and Another v. Farmex Limited (1989-1990) 2 GLR 263 holding 3 and Delmas Agency v Food Distribution [2007-2008] 2SCGLR 749.** The law is that he that alleges must prove. From the evidence, the court found as a fact the Respondent supported the Petitioner to complete her University programme. However, there is no sufficient evidence on record that shows that the amount spent on the Petitioner's Degree programme at the University is GHC100,000.00 or more than GHC100,000.00 for which Respondent is claiming GHC100,000.00. Accordingly, Respondent relief for GHC100,000.00 is dismissed for lack of sufficient evidence.

33. Petitioner on the other hand is claiming for a lump sum of Hundred Thousand Ghana Cedis (GH¢100,000.00) as reasonable compensation for all the stress, pain and sacrifice she allegedly put into the marriage. It is noteworthy that before the parties separated, the Petitioner did what is expected of her as a wife by performing various household chores for the Respondent like keeping the home, washing and keeping the laundry generally clean, cooking and taking care of the Respondent's catering needs as well as those of visitors, raising up of the children in a congenial atmosphere, among others. From 2015 to 2020 the

Petitioner bore the greater portion of the expenses in taking care of the children even though it is on record that Respondent occasionally sent some money for the upkeep of the children after intervention by DOVSU. The court also found that from the time the children were born up to 2020 or for the greater part of their lives, the Petitioner was living with the children most of the times even though Respondent visited them occasionally. This is due to the fact the parties were working at different places for a considerable period of time.

34. The court is empowered upon dissolution of marriage to order either party to the marriage to pay to the other a sum of money as part of financial provision or convey to the other party such movable or immovable property as settlement of property rights. Thus, **section 20 of the Matrimonial Causes Act, 1971 (Act 367)** on property settlement as follows:

20 (1) The court may order either party to the marriage to pay to the other party such sum of money or convey to the other party such movable or immovable property as settlement of property rights or in lieu thereof or as part of financial provision as the court thinks just and equitable.

35. Accordingly, having found that the Petitioner performed her duties as a wife or supported the Respondent in one way or the other till they separated as well as raised the children in a congenial atmosphere during the greater part of their lives, it will be improper to let her go without any financial provision or compensation. The petitioner is claiming for GHC100,000.00 as compensation but this court considered the fact that the Respondent supported the Petitioner to complete her University programme. So, this court will therefore award the sum

of Thirty Thousand Ghana Cedis (**GHC30,000.00)** in favour of the Petitioner as financial settlement/provision against the Respondent.

Conclusion

36. Having examined the facts as alleged by the Petitioner and the Respondent as well as the totality of the evidence adduced in the trial by the parties in accordance with the above-mentioned authorities, this court is of the considered opinion that the marriage between the parties herein has broken down beyond reconciliation. Accordingly, the court holds that:

    a. The marriage contracted between Petitioner and the Respondent in July, 2009 at the Gowrie Catholic Church in the Bongo Parish is hereby dissolved.

    b. Custody of Amanda Adabre aged 15 years and Stanislaus Adabre aged 12 years is granted to the Respondent subject to the right of the Petitioner to have access to them whiles custody of Elizabeth or Danee Adabre aged 10 years is granted to the Petitioner subject to the right of the Respondent to have access to her. When Amanda and Stanislaus are going to spend the vacation with Petitioner, Respondent shall bear the cost of transportation and when they are coming back to the Respondent, Petitioner shall bear the cost of transportation. This also applies to Elizabeth or Danee Adabre.

    c. The Respondent shall pay maintenance allowance in the sum of five hundred Ghana Cedis (**GHC500.00**) monthly to the Petitioner for upkeep of Elizabeth. This order is effective April 2025 and it shall be paid on the 30th day of each month except in February it shall be paid on 28th or 29th as the case may be.

d. The Respondent shall be responsible for educational expenses and medical expenses of the three (3) children of the marriage. The Petitioner shall also support the Respondent in paying the educational and medical expenses.

e. The sum of Thirty Thousand Ghana Cedis (**GHC30,000.00)** is awarded against the Respondent in favour of the Petitioner as financial settlement/provision.

f. The Petitioner and the Respondent are advised not to influence the children of the marriage against each other. The parties are also encouraged to communicate in order to enable them take good care of the children together.

g. Other reliefs claimed by both parties are however dismissed.

h. There will be no order as to costs. The parties are to bear their respective costs incurred in pursuing this matter.

(SGD.)
H/W MAWUKOENYA NUTEKPOR
(DISTRICT MAGISTRATE)